

were interfered with by the improper performance of management duties under the Management Agreements (FAC ¶¶ 76, 78 ["as part of their management" of the properties, the acts and omissions in management caused the interference with the tenant contracts].) The foundation for the claim against Alder Creek based on Plaintiffs' allegations of the cause of the interference therefore fails, and the FAC fails to state this cause of action against Alder Creek. The eighth cause of action against Alder Creek fails for a similar reason. (See FAC ¶¶ 83 ["Pursuant to the Agreements . . ."], and 84 ["as part of their management" of the properties].)

6. Declaratory Relief (10th C/A) and Accounting (11th C/A)

The controversy Plaintiffs allege exists between the parties is allegedly regarding "the rights, duties, responsibilities and obligations" under the Management Agreements. (FAC¶ 96.) (See also FAC ¶ 97 [alleging a material condition of the Management Agreements is for defense, indemnification, and insurance coverage].) Alder Creek is not a party to the Management Agreements, so this cause of action does not allege a basis for obtaining declaratory relief against Alder Creek regarding the rights and obligations of the parties to those agreements.

An accounting cause of action requires allegations of a relationship that supports the need for the defendant to account to the plaintiff. (*Sass, supra*, 10 Cal.5th at 869; *Teselle, supra*, 173 Cal.App.4th at 179.) Plaintiffs have not alleged a relationship with Alder Creek based on the Management Agreements or any agency relationship.

7. Conclusion as to Alder Creek (3rd – 11th C/As)

For the reasons stated, the motion for judgment on the pleadings as to the third through eleventh causes of action alleged against Alder Creek is **granted, with leave to amend**.

6. 9:00 AM CASE NUMBER: C24-01562
CASE NAME: MARK SHOTWELL VS. STATE FARM GENERAL INSURANCE COMPANY
*HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER DISCOVERYRESPONSES FROM
DEFENDANT STATE FARM GENERAL INSURANCE COMPANY
FILED BY:
TENTATIVE RULING:

Appearance required. Counsel for the parties shall be prepared to discuss Request for Production number 10 and Special Interrogatory 4.

7. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
*HEARING ON MOTION IN RE: DISQUALIFY COUNSEL FOR UNAUTHORIZED DOCUMENT
COLLECTION AND POSSESSION OF TAX RECORDS.
FILED BY: